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April 27, 2017

VIA FIRST CLASS MAIL

Ms. Rachel Dickon
Assistant Secretary of Federal Maritime Commission
800 North Capitol St.
Room 1046
Washington, D.C. 20573

Re: Docket No. 15-11 – Ovchinnikov v. Hitrinov

Dear Ms. Dickon:

Enclosed for filing in the above-captioned matter are an original true copy and five (5) additional copies of:

1. Respondents' Partial Opposition to Complainants' Motion for an Increase of Up to Eighteen Pages

If you have any questions, please do not hesitate to contact me.

Best regards,



Eric Jeffrey

Enclosures

FEDERAL MARITIME COMMISSION

WASHINGTON, D.C.

DOCKET NO. 15-11

IGOR OVCHINNIKOV, ET AL

v.

MICHAEL HITRINOV ET AL

Consolidated With

DOCKET NO. 1953(I)

KAIRAT NURGAZINOV, ET AL

v.

MICHAEL HITRINOV ET AL

RESPONDENTS' PARTIAL OPPOSITION TO COMPLAINANTS'
MOTION FOR AN INCREASE OF UP TO EIGHTEEN PAGES

Pursuant to FMC Rules 69 and 71, Respondents hereby oppose in part Complainants' April 25, 2017¹ motion for an increase of up to eighteen (18) pages of the page limit applicable to their Exceptions to the Presiding Officer's Initial Decision. Although, as elaborated below, Complainants have not provided justification for any increase in the page limits, much less the substantial increase they request, Respondents would as a matter of courtesy agree to an

¹ Respondents are somewhat surprised at the delayed filing of this motion, given that Counsel for Complainants asked the undersigned for consent about a week earlier, as shown in the email string attached to the Motion itself. We assume that the motion was not deferred for the purpose of imposing pressure on the Commissioners to grant the additional pages, or to limit Respondents' ability to submit an effective reply.

evenhanded increase of five (5) pages for both Complainants' Exceptions and the Defendants' reply thereto.

1. Page Limits Play an Important Role in Providing Efficient and Cost-Effective Adjudications.

Page limits serve a number of salutary purposes in providing for "the just, speedy, and inexpensive determination of every proceeding" required by FMC Rule 1. They are routinely used by courts and administrative agencies as a way to manage endlessly overloaded dockets and to assist in assuring the efficient, economical, and timely resolution of disputes.

The Commission has, for those very reasons, established under FMC Rule 227(e) a fifty (50) page limit for all Exceptions and Replies (exclusive of certain pages).² This is far more generous than the 30 pages generally allotted under the Federal Rules of Appellate Procedure. See F.R.A.P. 32.

Recognizing that there may be unusual cases where additional pages may be warranted to address multiple issues or matters of unusual complexity, the Commission has provided for possible increase in the number of pages allowed "for good cause shown." 46 C.F.R. § 502.227(e). The Commission has explained that this "good cause" standard is not designed for regular use, but rather, only for "those *extraordinary* cases in which a 50-page brief would be insufficient to address the relevant issues." *Rose Int'l, Inc. v. Overseas Moving Network Int'l, Ltd.*, 28 S.R.R. 1128, 1129 (FMC 1999) (emphasis added).

² When adopting page limits for briefs before the ALJ and on Exceptions, the Commission sought to "encourage efficiency and focus in proceedings which have become increasingly time consuming and costly" and observed that "in most cases, lengthy briefs are not required to fully discuss the issues." Federal Maritime Commission, Miscellaneous Amendments to Rules of Practice and Procedure, 64 Fed. Reg. 7804 (May 1, 1999). See also *Rose Int'l, Inc. v. Overseas Moving Network Int'l, Ltd.*, 28 S.R.R. 1128, 1129 (FMC 1999), where the Commission explained that "the 50-page limit was promulgated as a means of improving the efficiency of the Commission's adjudicatory process."

2. Complainants Have Not Nearly Met this Demanding Standard.

Complainants' perfunctory attempt to meet the "good cause" standards falls far short of the "extraordinary" circumstances required by the Commission, and if accepted would open the floodgates to added pages in virtually every proceeding. Complainants simply rely on their own *ipse dixit* that an increase in pages is "necessary to a full and fair exposition of their argument," without providing the thorough and thoughtful reasoning necessary to demonstrate that claim. All that they offer in support is a series of numbers, and one vague claim of numerosity.

Before addressing Complainants' numbers, we note a number of our own – the number "one." Because the Presiding Officer ruled in Complainants' favor on one of the three issues raised in the Motion, and contingently in their favor on another, there is only one substantive issue that Complainants need to address -- whether they are somehow entitled to the status of "consignees" despite never appearing on a single bill of lading or other shipping document. As Complainants' addressed *all three* issues before the ALJ in a total of only 20 pages,³ it is difficult to understand how they could now need 68 pages to address but *a single* issue.

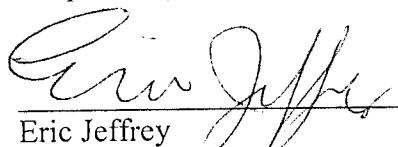
Turning now to the numbers asserted by Complainants, it is obvious that they cannot bear the weight required to meet the standard of "extraordinary" circumstances. The FMC's rules do not provide for a sliding scale of pages for Exceptions based on the number of pages or findings of facts contained in the Initial Decision, but rather impose upon movant the affirmative burden of demonstrating that those particular pages/findings cannot reasonably be addressed in 50 pages. *Rose, supra*, 28 S.R.R. at 1129.

³ Even including Complainants' two responses to the Presiding Officer's Order to supplement the record, the total number of pages is only 49 pages.

That the Initial Decision totaled 73 pages and included 134 findings of fact is meaningless. In *Rose, supra*, for example, the Commission explained that “[a] lengthy record and a long initial decision are not, on their own, sufficient to show good cause.” 28 S.R.R. at 1129.⁴ Furthermore, Exceptions are specifically limited to “particular errors” to which the excepting party objects, see Rule 227(a), and as the Commission stated in *Rose* are intended to “focus on the exceptions to the initial decision.” 28 S.R.R. at 1129. The FMC’s Rules neither require nor permit the filing party to address issues on which it prevailed, the typically prolonged and uncontested recitation of what each of the Parties did and argued below, or the findings of fact other than the ones – generally quite limited – with which the party disagrees. *Id.*

For the foregoing reasons, Complainants respectfully request that Respondents’ motion be denied in part, and that the Commission instead permit each side an additional five (5) pages.⁵

Respectfully submitted,



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Dated: April 27, 2017

⁴ In that case, the Initial Decision was 210 pages long. And as quoted above, *Rose* also puts paid Complainants’ vague reference to “vast amounts” of documentary evidence. In any event, such a claim is difficult to credit under the normal understanding of “vast,” especially since Complainants addressed those documents in less than 50 pages before the Presiding Officer.

⁵ This is consistent with *Rose*, where the Commission granted additional pages totaling one quarter of the request.

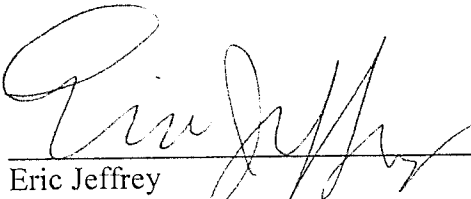
CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing Respondents' Partial Opposition to Complainants' Motion for an Increase of Up to Eighteen Pages by U.S. Mail, First-Class, Postage Prepaid and E-Mail to the following:

Marcus A. Nussbaum, Esq.
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Date: April 27, 2017


Eric Jeffrey
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